

SUBCONTRACTOR AGREEMENT

Between

**A3 Technology, Inc.
327 W. White Horse Pike
Egg Harbor City, NJ 08215**

and

**Space Metrics Inc.
600 Maryland Ave. SW, Suite 403E
Washington, DC. 20024**

SUBCONTRACT NUMBER: 05100-025

A3T PRIME CONTRACT NUMBER: ~~-693KA9-22-D-00003-~~ 693KA8-22-D-00026

SUBCONTRACT TYPE:

- ☒ Indefinite Delivery/Indefinite Quantity (ID/IQ)
- ☐ Firm-Fixed Price (FFP)
- ☒ Time and Material (T&M)
- ☐ Labor Hours (L/H)
- ☐ Cost Reimbursement (CPFF/CPAF/CPIF)
- ☐ Other ()

PRIORITY RATING:

- ☐ Overall Agreement
- ☒ Per individual Task Order

SECURITY CLASSIFICATION:

- ☐ Overall Agreement
- ☒ Per individual Task Order

A3T Subcontract Representative: Kevin Walker
Chief Financial Officer

THIS AGREEMENT is made this 20th day of July, **2022**, by and between **A3 Technology, Inc. (A3T)** ("Company"), a New Jersey Corporation with offices located at 327 W. White Horse Pike, Egg Harbor City, NJ 08215, and **Space Metrics Inc.** ("Subcontractor"), a Maryland Corporation with offices located at 600 Maryland Ave. SW, Suite 860E, Washington, DC. 20024, each a "Party" and collectively the "Parties".

WHEREAS, the "Company" is primarily engaged in the business of supplying services; and has been awarded **contract number 693KA8-22-D-00026** hereinafter referred to as ("Prime Contract") by the **Federal Aviation Administration** ("Customer") for the support of the **System Engineering and Technical Innovative Solutions (SETIS)** program.

WHEREAS, Subcontractor has represented it has the professional background and expertise to perform services in support of the Prime Contract for the Company; and

WHEREAS, the Company wishes to engage the services of the Subcontractor to perform the specific assignment set forth in **Exhibit A** and the Subcontractor wishes to be so engaged;

NOW, THEREFORE, in consideration of the mutual promises hereinafter contained, the Parties hereto agree as follows:

SECTION 1 - APPOINTMENT OF SUBCONTRACTOR

- 1.1 **Subcontractor** is hereby appointed to perform the services described in the Statement of Work ("SOW") in **Exhibit A** on behalf of the Company.

SECTION 2 - PERIOD OF PERFORMANCE

The base term and option periods of this Agreement shall be as provided below. A3T reserves the right to extend the term of this Agreement by issuing a unilateral modification to exercise an option period based on A3T's sole judgment and discretion.

Period	Inclusive Dates	Period Exercised
Base Period	July 1, 2022 – June 30, 2025	Executed
Option Period 1	July 1, 2025 – June 30, 2028	TBD
Option Period 2	July 1, 2028 – June 30, 2030	TBD
Option Period 3	July 1, 2030 – June 30, 2032	TBD

SECTION 3 - DUTIES

- 3.1 During the term of this Agreement, Subcontractor shall perform such services ("Services") and provide such products ("Products") as set forth in **Exhibit A**. Subcontractor agrees that Customer is the end user of the Services and Products supplied by Subcontractor and all rights, warranties, and representations applicable to such Services and Products, including those provided in any executed software licensing agreement, shall apply to Customer and the Company
- 3.2 The Subcontractor shall only tender for acceptance those items that conform to the requirements of this Agreement. The Company reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Company may require repair or replacement of nonconforming supplies or re-performance of nonconforming services at no increase in contract price. If repair/replacement or re-performance will not correct the defects or is not possible, the Company may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services, or it may cause the same to be corrected and deduct costs incurred from Subcontractor's compensation.

- 3.3 Subcontractor and each assignee under an assignment entered into under this Agreement and in effect at the time of final payment under this Agreement shall, if required, execute and deliver at the time of and as a condition precedent to final payment under this Agreement, a release discharging the Company, its officers, agents, Customer, and employees, from all liabilities, obligations and claims arising out of or under the Agreement, in a form and terminology prescribed by the Company.
- 3.4 Subcontractor shall conduct activities in a lawful and ethical manner and shall exert its best efforts to enhance the good reputation and best interests of the Company and shall refrain from any conduct that will cause, or tend to cause, any injury to the Company, its business, or its reputation.
- 3.5 In addition and without prejudice to all warranties expressed or implied by law, Subcontractor warrants that all supplies/services covered by this Subcontract will be of good material and workmanship and free of defects. Subcontractor warrants that the technical and management personnel proposed to perform the work hereunder are qualified to perform their assigned tasks as defined hereunder, including but not limited to, possession of valid personnel security clearances. Subcontractor warrants that to the extent required by this Agreement and the Customer contract, it possesses a valid facility clearance. The above warranties also constitute conditions of sale and shall survive inspection, acceptance and payment hereunder.

SECTION 4 – DESIGNATED REPRESENTATIVE

- 4.1 The Designated Representative of the Company for this Agreement is:
Kevin Walker, Chief Financial Officer.

SECTION 5 – INSPECTION AND AUDIT

- 5.1 Subcontractor's books, records, plants and equipment engaged (or that may be engaged) in the performance of this Agreement, shall at all reasonable times during the performance thereof and for a period of three (3) years after final payment hereunder, be subject to inspection and audit by any authorized representative of the Company or the Customer to determine whether all costs claimed have been incurred or anticipated to be incurred in performance of this Agreement were properly charged and can be supported. Each payment theretofore made shall be subject to adjustment to the extent of amounts that are found by the Company or Customer not to have been properly made.

SECTION 6 - INDEMNIFICATION FOR DEFECTIVE COST OR PRICING DATA

- 6.1 If any price, or any costs reimbursable to the Company under the Prime Contract should be disallowed or increased because Subcontractor or any of its subcontractors hereunder furnished certified cost or pricing data which were not complete, accurate and current, then the contract price, or estimated cost, as appropriate, established herein shall be reduced by an amount equivalent to those costs determined to be defective plus applicable Subcontractor overheads.
- 6.2 Indemnification under paragraph 6.1 shall not be less or greater than that recovered against Company by the Customer for such defective cost or price data. The profit or fee as appropriate shall be adjusted in proportion to the reduction in estimated cost or price.

SECTION 7 - TESTING AND ACCEPTANCE

- 7.1 Company and Customer shall have the right to inspect and test the work performed by Subcontractor hereunder, at reasonable times and without causing any undue delay or disruption. Acceptance of all work performed shall be subject to the acceptance criteria in **Exhibit A**, and/or to an Acceptance Test Plan mutually agreed to by Subcontractor, Customer, and Company. Payment shall be contingent on Acceptance of the work to which the payment relates.

SECTION 8 - INVOICING AND PAYMENT

8.1 Subcontractor shall submit an invoice on a monthly basis to the Company by the fifth calendar day of each month for all hours worked and products provided in the previous month. Subcontractor invoices shall provide the below information:

- A. Name and address of the subcontractor
- B. Subcontract number
- C. Task Order number
- D. Period covered by the invoice.
- E. Invoice Date.
- F. All current and cumulative direct labor charges against this Agreement substantiated by hours and dollars, by individual employee incurred by labor category/skill level, for the period.
- G. Remaining hours and funds against this Agreement.
- H. Name and address of subcontractor official to which payment is to be sent.
- I. Name, title, phone number, and mailing address of person to be notified in event of a defective invoice.
- J. Any other information or documentation required by the Prime Contract.

Each invoice shall contain the following certification from Subcontractor: "The Subcontractor hereby certifies that the information contained in this invoice is accurate, current and complete as of the day of submission."

Fractional hours (30 minute increments only) shall be paid on a prorated basis. Invoices shall not exceed the maximum allowable hours and costs set forth in this Agreement.

Each Subcontractor employee will be required to complete and sign an A3T Subcontractor/Consultant Time Sheet on a semi monthly basis. The A3T Deltek Time and Expense system will be used for time collection by subcontractor employees unless otherwise directed by the Company. Time Sheets are to be submitted to the A3T Project Manager by 10 am on the first working day following the end of each semi-monthly period.

8.2 Travel may be required for the performance of this subcontract. All travel must have prior authorization of the Company and the Customer. The Subcontractor will be reimbursed on a cost plus no burden/profit basis for actual reasonable transportation costs and actual reasonable subsistence costs incurred during the performance of the contract, not to exceed those rates applicable to Government employees. When travel has occurred, the Subcontractor employee must submit all required supporting documentation in the A3T Deltek Time and Expense system. All reimbursement of travel costs shall be in accordance with the Federal Travel Regulations.

All requests for travel must be submitted to the Company Program Manager or designated travel coordinator. The Subcontractor shall only incur travel expenses when the task order authorizes them AND prior written approval is received from the Company and the Customer. All requirements for international travel that apply to federal employees shall apply to contractors under this statement of work. Blanket agreements for periods of time or individual trips may be used, depending on the circumstances. Normal commuting expenses are not allowed.

8.3 This subcontract strictly prohibits any material or ODC costs unless approved in advance by the Company and the Customer.

8.4 **To ensure proper receipt and handling, the invoice MUST be provided via e-mail to the Company at the following address:**

*A3 TECHNOLOGY, INC. PROPRIETARY/CONFIDENTIAL
05100-025*

Kevin.Walker@a3technologyinc.com

- 8.5 Subsequent to Company's receipt of a correct invoice and acceptance of the work performed in accordance with Section 7 herein, Company shall pay the invoice net forty-five (45) days of the date of its receipt from the subcontractor and acceptance of the work, whichever is later. Submission of invoices with errors or omissions will result in payment delays. All supporting documentation (e.g., receipts, airplane tickets, rental car receipts, customer approvals) will be included with travel expenses. Notwithstanding the terms and conditions of this Agreement, Company is not liable for payments that are not in accordance with Customer's pricing guidelines. If paid by check, the date of payment shall be the date the check is mailed, as evidenced by the postmark.

SECTION 9 - LIMITATION OF EXPENDITURE/ALLOWABLE COSTS

- 9.1 The current value of this Agreement is defined per individual Task Order as described in **Exhibit B**. The Company shall be liable only to the extent of actual Services or Products delivered, or as appropriate, time worked by the Subcontractor and charges incurred in accordance with this Agreement, and approved by the Company.
- 9.2 All costs incurred in accordance with this Agreement for the professional services of the Subcontractor shall be allowable costs in accordance with FAR Part 31; and any cost guidance or regulations supplied by the Customer; 31 USC §1352 as amended by Section 319 of Public Law 101-121; and all other applicable laws and regulations.

9.3 SUPPLIES/SERVICES

The Subcontract ceiling will be equal to the current value as stated in Section 9.1 above. This Subcontract is **incrementally** funded by modifications issued that will authorize specific labor categories and fully-burdened labor rates for each Task Order. Reimbursement of costs will not be provided for any labor category or rate not specified in the Task Order. Unless this Subcontract is amended in writing by mutual agreement of the parties, Company is not obligated to compensate Subcontractor beyond the funded amount. Any work performed in excess of the funded amount shall be at the Subcontractor's risk.

The labor rates set forth herein includes all applicable Federal, State and local taxes and duties including, but not limited to, sales, use and value-added taxes, arising out of or relating to Subcontractor's delivery of goods or services to Company, or Subcontractor's performance of this Subcontract.

The Company will reimburse the subcontractor for the labor categories and skill levels at the fully burdened labor rates authorized in the issued Task Order. If additional hours are required in excess of a 40-hour workweek, they shall be handled on a case-by-case basis and will be subject to approval of the A3T PSS Program Manager and the Customer. Overtime and/or shift premiums will not be authorized.

Subcontractor shall notify the Company's Designated Representative in writing, if at any time 75% of the funded amount is expended.

SECTION 10 - SUBCONTRACTOR PERSONNEL

- 10.1 All personnel shall satisfy the specific educational, experience, and qualifications expressed in **Exhibit B**.
- 10.2 Prior to any person being assigned to work on this contract, the Subcontractor shall submit the resume of said individual(s) to the Company who will review and concur or non-concur on the qualifications, experience, and suitability of the individual to perform work under this contract.

Company and Customer concurrence and authorization to begin work (including resume approval and security clearance processing) are required prior to the performance of work on a Task Order. Costs incurred in violation of this clause shall be deemed as unallowable costs.

Company reserves the right to disapprove the assignment or request the removal of any personnel assigned to perform work hereunder. Such disapproval or removal must be based upon a failure to satisfy Customer or contractual requirements, demands of the government customer, or other valid justification. Company shall notify Subcontractor, in writing, of the disapproved assignment or requested removal.

The Subcontractor shall notify the Company within 24 hours whenever an employee performing work under this Contract terminates employment. The Subcontractor will be responsible for returning, or ensuring that the employee returns, all Company or Customer issued employee identification and all other property, including GFE, and confidential information, to the Company.

10.3 The Subcontractor in performance of this contract may have a need for access to and use of various types of data and information in the possession of the Customer which the Customer obtained under conditions which restrict the Customer's right to use and disclose the data and information, or which may be of such a nature that its dissemination or use other than in the performance of this contract would be adverse to the interests of the Customer or other parties. Therefore, the Subcontractor agrees to abide by any restrictive use conditions on each data item and not to:

- A. Disclose such data and information to others without written authorization from the Company's Subcontract Representative and the Customer CO, unless the Customer has made the data and information available to the public; and
- B. Use for any purpose other than the performance of the contract to which the data which bears a restrictive marking legend relates.

The Subcontractor agrees to make its employees aware of the absolute necessity to maintain the confidentiality of data and information as required above and to make its employees aware of the sanctions which may be imposed for divulging either the proprietary data of other companies or proprietary data that is obtained from the Customer to anyone except as authorized. The Subcontractor shall obtain from each employee engaged in any effort connected with this contract and agreement, in writing, which shall in substance provide that such employee will not, during his/her employment by the Subcontractor, or thereafter, disclose to others or use for his/her own benefit or the future benefit of any individual any trade secrets, confidential information, or proprietary/restricted data (to include Government "For Official Use Only"), received in connection with the work under this contract. All subcontractor employees will be required to sign the PSS Sensitive Program Information Non-Disclosure Agreement/OCI statement provided in **Exhibit D**.

The Subcontractor specifically agrees to hold the Company harmless and indemnify the Company as to any cost/loss resulting from the unauthorized use or disclosure of proprietary or confidential data by the Subcontractor, its employees, subcontractor, or agents. Except as the Company specifically authorizes in writing, upon completion of all work under this contract, the Subcontractor shall return all such data and information, including all copies, modifications, adaptations, or combination thereof, to the Company, and shall certify to the Company that all such information has been returned.

SECTION 11 – FORM OF AGREEMENT

11.1 The Subcontractor shall be an independent contractor to the Company. This Agreement is not intended by the Parties to constitute or create a joint venture, pooling arrangement, partnership, or formal business organization of any kind, other than a contractor/subcontractor agreement, and the rights and obligations of the Parties shall be only those expressly set forth herein.

- 11.2 Neither Party shall have authority to bind the other except to the extent authorized herein. The Subcontractor further agrees to indemnify and hold the Company harmless from any and all injury, loss or damage suffered by virtue of such unauthorized commitment.
- 11.3 Nothing in this Agreement shall be construed as providing for the sharing of profits or losses arising out of the efforts of either or both Parties.

SECTION 12 - INSURANCE

- 12.1 During the term of this Agreement, the Subcontractor shall obtain and maintain in effect, at its own expense, the following insurance coverage(s):
 - A. Worker's Compensation and Employer's Liability. The subcontractor shall comply with applicable Federal and State workers' compensation and occupational disease statutes. The contractor shall maintain employer's liability coverage of at least \$100,000, except in States with exclusive or monopolistic funds that do not permit worker's compensation to be written by private carriers.
 - B. General Liability. The subcontractor shall maintain bodily injury general liability insurance written on a comprehensive form of policy of at least \$100,000* per person and \$500,000* per occurrence. Property damage limits, if any, will be set forth elsewhere in the subcontract.
 - C. Automobile Liability. If automobiles will be used in connection with performance of this contract, the contractor shall maintain automobile liability insurance written on a comprehensive form of policy with coverage of at least \$200,000* per person and \$500,000* per occurrence for bodily injury and \$20,000* per occurrence for property damage.
 - D. Such other insurance, and in such amounts, as may be required by the Company in performance of the prime contract as shown in any exhibit found in the pertinent subcontract with the Subcontractor.
 - E. Such other insurance, and in such amounts, as may be required by the Company in the performance of **Exhibit A**.
 - F. The maintenance of insurance coverage as required by this clause is a continuing obligation, and the lapse or termination of insurance coverage without replacement coverage being obtained will be grounds for termination for default.
- 12.2 If requested, the Subcontractor shall forward certificates of insurance to the Company, which shall include a provision for cancellation notice of not less than 10 days directed to the Company and its Designated Representative.

SECTION 13 – INTELLECTUAL PROPERTY

- 13.1 The Subcontractor shall disclose promptly to the Company all ideas, inventions, designs, drawings, models, writings and other copyrightable material, discoveries and improvements, hereafter referred to as "Subject Inventions", whether or not patentable, relating to the work hereunder which are conceived or first reduced to practice by the Subcontractor in the performance of the work under this Agreement.
- 13.2 Inventions shall remain the property of the originating party. In the event of joint inventions, the parties shall establish their respective rights by negotiations between them. In this regard, it is recognized and agreed that the parties may be required to and shall grant licenses or other rights to the Customer to inventions, data, and information under such standard provisions which may be contained in the

Customer prime contract contemplated by this Agreement, provided, however, such license or other rights shall not exceed those required by said contract.

SECTION 14 – CONFIDENTIALITY/NONCIRCUMVENTION

- 14.1 In performing the terms of this Agreement, it may be necessary for the Parties to provide confidential or proprietary information to one another. The disclosure and use of all confidential or proprietary data shall be in accordance with the Mutual Nondisclosure Agreement dated March 3, 2019.
- 14.2 Subcontractor may not utilize information obtained during the course of this Agreement to compete directly or indirectly against the Company, for three (3) years after the termination of this Agreement.
- 14.3 Subcontractor recognizes that Company is engaged in the performance of contracts with the United States Government and that, under such contracts, Company is required to meet various requirements as to the safeguarding and nondisclosure of information relating to the National Defense. Subcontractor agrees, therefore, that services provided will be in accordance with and conform to all applicable rules, regulations, and requirements of the Government and of Company with regard to such matters. Subcontractor further understands that any failure to safeguard information relating to the National Defense may subject Company to criminal liability under the laws of the United States, including Title 18 USC, Sections 793 through 799, and Executive Orders Number 10104, dated February 1, 1950, Number 10501, dated November 5, 1953, and Number 10865, dated February 20, 1960.

SECTION 15 - COMPLIANCE WITH LAW

- 15.1 Subcontractor shall observe and abide by all Federal, State, and local laws, rules and regulations applicable to the work performed hereunder. All Government regulations and attachments referenced in the Prime Contract and in this Subcontract are incorporated herein and applicable to the work to be performed.
- 15.2 Each Party represents that it is eligible to hold and perform government contracts and has reviewed the statutory and regulatory provisions of the Subcontract and warrants that it will comply with the relevant portions of those statutes and regulations as they apply to each Party's respective obligations and duties under this Subcontract. If, during the term of this Agreement, either Party becomes ineligible to bid on or perform a government contract, it shall promptly notify the other Party.

SECTION 16 – NONPROSLEYTIZATION

- 16.1 During the term of this Subcontract and for a period of one year after its termination or expiration, neither Party will solicit for employment any technical, sales, marketing or management employee of the other, its parent corporation, if any, or any affiliate of the other, whose responsibilities relate to this Subcontract. However, either Party may hire an individual employed by the other who, without other solicitation, responds to employment advertising in newspapers, trade publications, web sites or any other public commercial media. The Parties expressly acknowledge the materiality of this covenant.

SECTION 17 - INDEMNIFICATION / LIMITATION OF LIABILITY

- 17.1 Both Parties hereby agree to indemnify and save the other Party, its parents, affiliates, officers, directors, employees and agents from and against all liability for injury or death to persons and damages to property, caused by the gross negligence or willful misconduct of the other Party.
- 17.2 Subcontractor shall not be liable for any injuries, death, or damages caused by the sole negligence of the Company.

- 17.3 Notwithstanding paragraph 17.1, except for claims based upon the infringement of proprietary rights or breach of confidentiality obligations, neither Party shall be liable to the other for any loss profits; incidental, special, indirect, exemplary, statutory or consequential damages; or any other claims brought against a Party, even if the other Party has been advised of the possibility of such damages or if such damages are foreseeable.

SECTION 18 – TERMINATION

- 18.1 The Company may terminate this contract for cause, in whole or in part. If this Agreement is terminated pursuant to this Section, the Company shall be liable for payment in accordance with the payment provisions of this Agreement for services rendered or products provided and accepted prior to the effective date of termination. Subcontractor shall have no claim against the Company for services not performed, anticipatory profits lost, or indirect or consequential damages claimed by reason of such termination.
- 18.2 This Subcontract may be terminated, in whole or in part, upon the occurrence of any of the following events:
- A. Mutual written agreement of the parties;
 - B. By the Company, upon written notice, if the Subcontractor materially defaults in the performance of this Subcontract or any Task Orders issued hereunder and the Subcontractor fails to cure such default within ten (10) calendar days of receipt of written notification of its default by the Company;
 - C. If either party is: (1) is unable to meet its financial obligations as they become due in the ordinary course of business; (2) admits in writing its inability to pay its debts; (3) files a petition under any chapter of the Bankruptcy Act, 11 U.S.C. §§ 101 et seq. ("Act"); (4) has an involuntary petition under the Act filed against it; (5) commences an action in any country under laws providing for the relief of winding up of insolvent or liquidating persons or entities; (6) files for the appointment of a receiver; (7) becomes insolvent; or (8) makes an assignment for the benefit of creditors, and such matters are not discharged or relieved within sixty (60) days;
 - D. By the Company, in whole or in part, if it deems, in its good faith discretion, that such termination is necessary to avoid an organizational conflict of interest;
 - E. By the Company in the event Subcontractor fails to diligently and timely perform the work under the Subcontract or Task Orders issued hereunder in accordance with the reasonable direction of the Company, and such failure continues for a period of ten (10) calendar days after Subcontractor receives written notice from The Company;
 - F. By the Company if so directed by the Government to remove Subcontractor from continued performance of Subcontract or Task Order;
 - G. By the Company if the Government stops work on a Task Order Supported by the Subcontractor; and
 - H. By the Company if the Government terminates the Prime Contract for convenience. Prime Contractor's authority to terminate the Subcontract for convenience is strictly limited to the extent of the Customer's termination of the Prime Contract for convenience. Within 60 days after receipt of a Notice of Termination for Convenience, Subcontractor shall submit a final termination settlement proposal to Prime Contractor setting forth the amount claimed by Subcontractor and including any substantiating documentation.

SECTION 19 - NOTICES

- 19.1 Any notice required or to be given under this Agreement shall be deemed given if in writing sent by certified mail or via email (with read receipt) to the following:

Notices to the Company should be sent to:

A3 Technology, Inc.

Attn: Kevin Walker

327 W. White Horse Pike

Egg Harbor City, NJ 08215

Email: kevin.walker@a3technologyinc.com

Notices to the Subcontractor should be sent to:

Space Metrics Inc.

Attn: Samuel Trotman

600 Maryland Ave. SW, Suite 860E,

Washington, DC. 20024

Email: STrotman@SpaceMetricsInc.Com

SECTION 20 - CHANGES

- 20.1 If the Prime Contract contains a "Changes" clause under which the Customer may make changes within the general scope of the Prime Contract to the work being performed, Subcontractor agrees, at the direction of Company, to make any changes, revisions, additions, or deletions to the work performed under this Subcontract caused by a change to the Prime Contract.
- 20.2 In the event such a directed change causes an increase or decrease in the cost or schedule, adjustments to cost and schedule will be made in accordance with the procedures specified in the "Changes" clause cited in the Prime Contract.
- 20.3 Notwithstanding any other provision of this Section, Company may, at any time, make changes in the scope of the Agreement, in the definition of services or tasks to be performed, and the time and place of performance thereof. If any such changes cause an increase or decrease in the estimated cost of, or the time required for, the performance of any part of the work under this Agreement, or otherwise affects any other provision of this Agreement, an equitable adjustment shall be made:
- A. In the total estimated cost, or such other reimbursable costs as may be reasonable and applicable to such changes; and/or
 - B. In the time provided for the performance of the work; and/or
 - C. In such other provisions of the Agreement as may be so affected, and the Agreement shall be modified in writing accordingly.
- 20.4 Any changes or amendments to the Agreement will be by a numbered, written "Amendment" or "Change Order" to include any equitable adjustments due hereunder.
- 20.5 A claim by Subcontractor for adjustment under this Section must be asserted within ten (10) days from the receipt by Subcontractor of a change notification.
- 20.6 This Section does not excuse Subcontractor from proceeding with the Agreement as amended

SECTION 21 - NOTICE OF DELAYS

- 21.1 The Customer has set strict requirements for timely delivery of the Services and Products in accordance with **Exhibit A**. In the event Subcontractor encounters difficulty in meeting performance requirements, or anticipates difficulty in complying with the delivery schedules or completion dates, or if Subcontractor has knowledge that any actual or potential situation is delaying or threatens to delay the timely performance of this Subcontract, Subcontractor shall notify Company immediately, in writing, identifying what work may be delayed and for how long, the corrective action that will be taken to prevent further delays, and the proposed new delivery schedule or completion date.
- 21.2 Notice provided pursuant to paragraph 21.1 above shall be informational only and shall not be construed as a waiver by Company of any delivery schedule or completion date, material breach, or any rights or remedies provided by law or under this Subcontract.

SECTION 22 - THIRD TIER SUBCONTRACT APPROVAL

- 22.1 Any proposed or existing subcontract(s) to this Agreement to perform a portion of the Services or provide Products hereunder shall, before beginning work, be submitted to and approved in writing by Company. Subcontractor shall obtain the advance written agreement of all third tier subcontracts to fully comply with the provisions of this Agreement.
- 22.2 Neither this Agreement nor any third tier subcontract will create any contractual relationship between any third tier subcontractor and Company, nor any liability of Company to any third tier subcontractor.

SECTION 23 - PRIME CONTRACT PROVISIONS

- 23.1 The general provisions of the Prime Contract set forth in **Exhibit C** are incorporated herein by reference and made part of this Subcontract. Where the words "Contracting Officer" and "Contractor" appear in the text of such provisions, such reference shall mean "Company" and "Subcontractor" respectively. References in such provisions to the "Government" shall remain as stated except where it is clear that "Company" should be substituted accordingly. All references in such provisions to "Contract" shall mean this Subcontract.

SECTION 24 – PROHIBITION OF MARKETING OR LOBBYING ACTIVITIES

- 24.1 Company has not engaged the services of Subcontractor for the purpose of influencing or attempting to influence (marketing or lobbying) any federal official on behalf of Company, in connection with the award, extension, continuation, renewal, amendment, or modification of any federal contract.
- 24.2 Subcontractor agrees to refrain from engaging in any communications with or making any appearances before any federal official on behalf of Company, for the purpose of influencing or attempting to influence (marketing or lobbying) said official in connection with any federal contract action.
- 24.3 Violation of this Section constitutes grounds for immediate termination of this Agreement at the discretion of the Company.

SECTION 25 - CERTIFICATION OF PROCUREMENT INTEGRITY

- 25.1 Subcontractor certifies that it is familiar with section 27 of the Office of Federal Procurement Policy Act (41 USC Sec. 423) ("the Act") as implemented in Part 3.104 of the Federal Acquisition Regulations (FAR), and the prohibitions contained therein. Subcontractor further certifies that during the performance of this Agreement, Subcontractor will not knowingly engage in conduct

prohibited by the Act and will report immediately to Company any information concerning any violation or possible violation of the Act.

SECTION 26 – ANTI-KICKBACK PROVISIONS

- 26.1 Subcontractor certifies that it is in full compliance with the provisions of the Anti-Kickback Act of 1986, 41 USC 51-58, and shall indemnify, protect, defend, and hold Company harmless from any liabilities or monetary loss Company may incur resulting from Subcontractor's failure to comply with said Act.

SECTION 27 - DRUG FREE WORKPLACE

- 27.1 Subcontractor is hereby informed that Company is or may be performing contracts for the federal government that incorporate the clause at FAR 52.223-6 Drug Free Workplace, which provides that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the Company's workplace. As a condition of acceptance of this Agreement, the Subcontractor agrees not to engage in the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance in the performance of this Agreement.
- 27.2 During the term of this Agreement, Subcontractor shall notify Company of any criminal drug statute conviction of its personnel within five days of such a conviction occurring.
- 27.3 Violation of this Section constitutes grounds for immediate termination of this Agreement at the discretion of the Company.

SECTION 28 - EXPORT ADMINISTRATION

- 28.1 Subcontractor will comply fully with all relevant export laws and regulations of the United States, the European Union, and all other foreign countries, including without limitation the U.S. Export Administration Regulations (collectively "Export Controls").
- 28.2 Without limiting the generality of the foregoing, Subcontractor will not export, direct, or transfer Software or Equipment, or any direct product thereof, to any destination, person, or entity restricted or prohibited by the Export Controls.

SECTION 29 - DISPUTE RESOLUTION

- 29.1 Government related Disputes: Any dispute that arises from or is related to this Subcontract and which relates to a matter that gives the Company or Subcontractor recourse against the Government under the Prime Contract or applicable law may be resolved in accordance with the disputes resolution provisions of the Prime Contract, or as follows:
- A. Subcontractor shall give the Company a fully-supported written claim concerning any such dispute as required under the Prime Contract, as soon as is reasonably practicable after the claim accrues, and in no event later than final payment under this Subcontract, or Subcontractor shall be barred from any remedy for such claim;
 - B. Subcontractor shall cooperate fully with the Company in prosecuting any dispute involving any transaction contemplated by this Subcontract, and will respond promptly to any reasonable requests for additional information and documents by either the Company or the Government. Subcontractor will be bound by the outcome unless: (x) the Company does not afford Subcontractor a reasonable opportunity to participate in the resolution of the dispute; (y) without Subcontractor's written consent, the Company settles or takes other action to prejudice Subcontractor's rights concerning the dispute; or (z) the Company, having determined to discontinue its own prosecution of the dispute, does not afford Subcontractor an opportunity to continue to prosecute the dispute in the Company's name;

- C. If the parties hereto agree to: prosecute Subcontractor's claim under this Paragraph 29.1, for any such claim of more than \$100,000, Subcontractor shall submit with the claim a certification to the Company and to the contracting officer of the Prime Contract that: (x) the claim is made in good faith; (y) the supporting data is accurate and complete to the best of Subcontractor's knowledge and belief; and (z) the amount requested accurately reflects the contract adjustment for which Subcontractor believes the Government is liable; furthermore, such certification shall be executed by a person duly authorized to bind Subcontractor, and Subcontractor shall indemnify and hold the Company harmless from damages, judgments, costs (including reasonable attorneys' fees), and other liabilities arising from any breach of such certification or any violation of the Contract Disputes Act of 1978 or any violation of common law or statutory prohibitions against misrepresentations, fraud or false statements;
- D. The parties hereto shall each bear their own costs of prosecuting any such dispute unless, (x) in the event that such dispute concerns only Subcontractor, such costs shall be borne solely by Subcontractor, or (y) otherwise provided by agreement between the parties hereto. Nothing in this Subcontract grants Subcontractor a direct right of action under the disputes clause of the Prime Contract.

29.2 Non-Government Related Disputes:

The parties will attempt in good faith to resolve any controversy or claim arising out of this Subcontract or breach thereof that is not subject to Paragraph 29.1 (a "Dispute") promptly by negotiation between senior executives of the parties who have authority to settle a dispute. The disputing party shall give the other party (the receiving party) prompt written notice of the Dispute. Within ten (10) days after receipt of said notice, the receiving party shall submit a written response to the disputing party. The notice and response shall include (a) a statement of the party's position and a summary of the evidence and arguments supporting its position, and (b) the name and title of the executive who will represent that party. The designated executives shall meet at a mutually acceptable time and place after the receiving party's receipt of the disputing party's written notice and thereafter as often as they reasonably deem necessary to exchange relevant information and to attempt to resolve the Dispute. If a Dispute cannot be informally resolved, within 60 days of such notice, such Dispute shall be subject to litigation in accordance with this Agreement.

- 29.3** The Subcontractor shall continue to perform fully while any disputes under Paragraph 29 are pending.

SECTION 30 - FORCE MAJEURE

- 30.1** Neither Party shall be liable in damages or have the right to terminate this Agreement for any delay or default in performing hereunder if such delay or default is caused by conditions beyond its reasonable control and occurring without its fault or negligence, including, but not limited to Acts of God, failure of suppliers, subcontractors, and carriers which were beyond its control, Government restrictions (including the denial or cancellation of any export or other necessary license), wars, insurrections, terrorist acts or other hostilities and/or any other cause beyond the reasonable control of the Party whose performance is affected. This paragraph notwithstanding, if the force majeure event was foreseeable, the performance of a Party is suspended or excused only to the extent that the respective Party exercised reasonable care and due diligence to avoid or mitigate the occurrence of its nonperformance, so that it is nonperformance of the Party that could not be reasonably prevented, not the force majeure event itself.

SECTION 31 - PUBLICITY

- 31.1** Work performed under this contract may involve access to information, including specifications, cost estimates and other sensitive data. Consequently, the Subcontractor (including individual employees thereof) shall not publish, permit to be published, or distribute for public consumption,

any information, oral or written, concerning the results or conclusions made pursuant to the performance of this contract, without the prior written consent of the Company. Except as required by law, or regulation, such information, including any news release, public announcement, or advertising material concerned with this contract shall be issued by the Subcontractor without prior written consent of the Company, whether orally or in writing, to any person except:

- A. Government personnel with a "need to know" who have signed a non-disclosure form;
- B. Employees of the Subcontractor with a "need to know" who have signed a non-disclosure form or;
- C. Such other person as may be designated in writing by the Company and who have signed a non-disclosure form.

Two copies of any material proposed to be published or distributed shall be submitted to the Company for review at least 30 days prior to the material being submitted for publication.

SECTION 32 - NON-WAIVER OF RIGHTS

- 32.1 No delay or omission by either Party in exercising any right under this Agreement will operate as a waiver of that or any other right. A waiver or consent given by either Party on any one occasion is effective only in that instance and will not be construed as a bar to or waiver of any right on any other occasion. Neither the Company's review, approval or acceptance of, nor payment for, any of the services or products provided by this Agreement shall be construed to operate as a waiver of any rights or of any course of action available under the terms of this Agreement.

SECTION 33 – ASSIGNMENT

- 33.1 This Agreement may not be assigned or otherwise transferred by Subcontractor, in whole or in part, without express prior written consent of Company, which consent will not unreasonably be withheld. This consent requirement shall not apply in the event Subcontractor changes its corporate name or merges with another corporation.
- 33.2 Subject to the foregoing, this Agreement shall benefit and be binding upon the successors and assigns of the Parties hereto but any prohibited assignment shall be void.

SECTION 34 – INTERPRETATION / ORDER OF PRECEDENCE

- 34.1 Ambiguity in this Agreement, if any, shall not be strictly construed against Company, but shall be resolved by applying the most reasonable interpretation under the circumstances.
- 34.2 In the event of inconsistency or conflict among the provisions of this Agreement, the inconsistency shall be resolved by giving precedence, in the following order, to:
 - A. The body of this Agreement
 - B. Task Orders issued under this Agreement
 - C. Exhibits to this Agreement, whether incorporated by reference or not
- 34.3 Section headings of this Agreement are for reference and convenience and shall not be utilized in the interpretation of this Agreement.
- 34.4 The language of this Agreement is expressly stipulated to be the English language. In the event that this Agreement shall be translated into one or more other languages, the English language version of this Agreement shall be the governing version for the purposes of interpreting and enforcing this Agreement.

SECTION 35 – SEVERABILITY

- 35.1 If any part, term or provision for this Agreement shall be held void, illegal, unenforceable, or in conflict with any law of a federal, state or local government having jurisdiction over this Agreement, the validity of the remaining portions of provisions shall not be affected thereby.

SECTION 36 - ENTIRETY OF AGREEMENT

- 36.1 This Agreement constitutes the entire understanding and agreement between the Parties, and supersedes and replaces all prior or contemporaneous understandings and agreements, written and oral, between the Parties, regarding the matters covered herein.
- 36.2 This Agreement may be amended only by a written instrument executed by a duly authorized representative of each of the Parties as set forth in Section 21.

SECTION 37 – APPLICABLE LAW/VENUE

- 37.1 Agreement is governed by and will be interpreted and construed in accordance with the Laws of the State of New Jersey, excluding its conflicts of law principles. Notwithstanding the above, any provision in this Subcontract that is (i) incorporated in full text or by reference from the Federal Acquisition Regulation (the "FAR"), or (ii) incorporated in full text or by reference from any Federal agency regulations that implement or supplement the FAR, or (iii) that is substantially based on any such agency regulation or FAR provision, shall be construed and interpreted according to the federal common law of government contracts as enunciated and applied by federal judicial bodies, Boards of Contract Appeals, and quasi-judicial agencies of the federal Government.
- 37.2 This Agreement shall not be governed by the United Nations Convention on Contracts for the International Sales of Goods, the application of which is expressly excluded.
- 37.3 The Parties agree that the state and federal courts located in New Jersey shall have exclusive jurisdiction and venue of all disputes arising in connection with this Agreement.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed:

A3 Technology, Inc.

Space Metrics Inc.

By:

By:

Name: Kevin Walker

Name: Samuel Trotman

Title: Chief Financial Officer

Title: President / CEO

Date: July 20, 2022

Date: July 20, 2022

Exhibits

- “A” Statement of Work**
- “B” Labor Category Descriptions and Ceiling Labor Rates**
- “C” Prime Contract Flow Down Provisions**
- “D” Organizational Conflict Interest Mitigation Plan**

EXHIBIT A
STATEMENT OF WORK

The SETIS SOW is provided in Attachment A.

EXHIBIT B

LABOR CATEGORY DESCRIPTIONS AND CEILING LABOR RATES

The Attachment B-1 provide the ceiling labor rates for each SETIS labor category. Lower labor rates may be proposed for competitive Task Orders. These are the only labor categories and rates that are allowed to be used for this subcontract. Labor categories and available funding will be authorized per individual Task Order. The SETIS labor categories and descriptions are provided in Attachment B-2.

EXHIBIT C

PRIME CONTRACT FLOW-DOWN PROVISIONS

This Subcontract incorporates AMS clauses by reference in accordance with the Prime Contract with the same force and effect as if they were given in full text. Full text of clauses referenced in this Subcontract and outlined in this section is available at: <https://fast.faa.gov/contractclauses.cfm>.

Clause	Title
3.1.7-1	Exclusion from Future Agency Contracts (July 2018)
3.1.7-2	Organizational Conflicts of Interest (July 2018)
3.1.7-4	Organizational Conflict of Interest –Mitigation Plan Required (October 2019)
3.1.7-5	Disclosure of Conflicts of Interest (July 2018)
3.1.7-6	Disclosure of Certain Employee Relationships (January 2019)
3.1.8-1	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity (October 2014)
3.1.8-2	Price or Fee Adjustment for Illegal or Improper Activity (October 2019)
3.2.2.3-8	Audit and Records (July 2010)
3.2.2.3-83	Prohibition Against Contracting with Inverted Domestic Corporations (October 2015)
3.2.2.7-6	Protecting the Government’s Interest when Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (April 2011)
3.2.2.7-8	Disclosure of Team Arrangements (April 2008)
3.2.3-2	Cost Accounting Standards (Oct 2019)
3.2.3-3	Disclosure and Consistency of Cost Accounting Practices (Oct 2019)
3.2.3-5	Administration of Cost Accounting Standards (Oct 2019)
3.2.5-1	Officials Not to Benefit (April 2021)
3.2.5-3	Gratuities or Gifts (October 2019)
3.2.5-4	Contingent Fees (October 1996)
3.2.5-5	Anti-Kickback Procedures (October 2019)
3.2.5-6	Restrictions on Subcontractor Sales to the FAA (October 2019)
3.2.5-8	Whistleblower Protection for Contractor Employees (April 1996)
3.2.5-13	Contractor Code of Business Ethics and Conduct (April 2010)
3.2.5-14	Display of Hotline Poster(s) (April 2008)
3.3.2-1	FAA Cost Principles (October 2019)
3.3.2.2	Reimbursement for Travel and Subsistence (April 2010)
3.4.1-10	Insurance - Work on a Government Installation (October 2020)
3.4.1-11	Insurance–Liability to Third Persons (October 2019)
3.4.1-12	Insurance (October 2019)
3.4.1-13	Errors and Omissions (July 1996)
3.5-1	Authorization and Consent (January 2019)
3.5-1 Alternate 1	Authorization and Content (January 2009)
3.5-2	Notice and Assistance Regarding Patent and Copyright Infringement (January 2009)
3.5-13	Rights in Data–General (October 2014)

3.5-13 Alternate I	Rights in Data–General (October 2009)
3.5-13 Alternate II	Rights in Data–General (October 2009)
3.5-13 Alternate III	Rights in Data–General (October 2009)
3.5-13 Alternate IV	Rights in Data–General (October 2009)
3.5-13 Alternate V	Rights in Data–General (October 2009)
3.5-14	Representation of Limited Rights Data and Restricted Computer Software (Jan 10)
3.5-15	Additional Data Requirements. (Jan 09)
3.5-16	Rights in Data–Special Works (January 2009)
3.6.2-2	Convict labor (Apr 96)
3.6.2-9	Equal Opportunity (July 2020)
3.6.2-10	Equal Opportunity Pre-award Clearance of Subcontracts (January 2020)
3.6.2-12	Equal Opportunity For Veterans (April 2022)
3.6.2-13	Affirmative Action for Workers With Disabilities (April 2022)
3.6.2-35	Prevention of Sexual Harassment (October 2018)
3.6.2-39	Trafficking in Persons (April 2019)
3.6.2-44	Notification of Employee Rights Under the National Labor Relations Act (January 2019)
3.6.3-13	Affirmative Procurement of Recycled Content and Products under Service and Construction Contracts (January 2020)
3.6.3-14	Use of Environmentally Preferable Products (April 2021)
3.6.3-16	Drug Free Workplace (March 2009)
3.6.3-23	Delivery of Electronic and Paper Documents (January 2020)
3.6.4-10	Restrictions on Certain Foreign Purchases (January 2010)
3.6.4-21	Export Control (July 2014)
3.6.4-23	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment (April 2022)
3.8.2-9	Site Visit (April 1996)
3.8.2-10	Protection of Government Buildings, Equipment, and Vegetation (July 2019)
3.8.2-11	Continuity of Services (October 2018)
3.8.2-19	Prohibition on Advertising (July 2019)
3.10.1-1	Notice of Intent To Disallow Costs (April 1996)
3.10.1-3	Penalties for Unallowable Costs (October 1996)
3.10.1-7	Bankruptcy (April 1996)
3.10.1-14	Changes- Time and Materials or Labor Hours (April 2022)
3.10.3-2	Government Property – Basic Clause (April 2019)

3-10.3-5	Use and Charges (October 2018)
3.13-5	Seat Belt Use by Contractor Employees (October 2001)
3.13-10	Contractor Attendance at FAA Sponsored Training (January 2003)
3.13-11	Plain Language (July 2006)
3.13-13	Contractor Policy to Ban Text Messaging While Driving (January 2011)
3.13-14	Reporting Executive Compensation and First-Tier Subcontract Awards (January 2018)
3.14-2	Contractor Personnel Suitability Requirements (April 2022)
3.14-3	Foreign Nationals as Contractor Employees (April 2022)
3.14-4	Access to FAA Facilities, Systems, Government Property, and Sensitive Information (October 2021)
3.14-5	Sensitive Unclassified Information (SUI) (January 2022)
3.14-6	Privacy or Security Safeguards (Nov 16)
3.14-8	Non-FAA Information Systems (Jul 17)
3-14-14	Cooperation with Defense Counterintelligence Program (DCIP) Requirements (July 2021)

EXHIBIT D

Organizational Conflict Interest Mitigation Plan

The Organizational Conflict Interest Mitigation Plan is provided in Attachment D.